



File No: EXP202303792

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 10, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BIROU GAS, S.L. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on May 17, 2023, the proposed resolution was issued, which is transcribed below:

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File No: EXP202303792

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against BIROU GAS, S.L. with NIF B39806062 (hereinafter, the respondent), indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) were observed, and actions were initiated under file number EXP202202261.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send this Agency the information and documentation indicated. On February 25, 2022, in a registered entry document numbered O00007128e2200009122, the respondent submitted a copy of the contract signed with the complainant and stated that this contract was introduced by MULTIGAS ASESORES, S.L. and that they completed the registration as all the data was correct.

Upon observing rational indications of a possible violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection, the complaint was admitted for processing on April 11, 2022.

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SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigation actions, two requests for information were sent to the respondent, relating to the complaint mentioned in the first section, requesting that they submit to this Agency the information and documentation indicated within ten working days. The first of these was registered out on June 21, 2022, while the second was registered on September 28, 2022.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by the respondent on June 22, 2022, and September 29, 2022, as evidenced by the acknowledgments of receipt in the file.

FOURTH: On October 6, 2022, the respondent sent to this Agency the registered entry document numbered REGAGE22e00044783031. In this document, the respondent again submitted the copy of the contract signed with the complainant. Additionally, they stated that the complainant requested the contract and the recordings and that, as there were no recordings due to it being an in-person sale,

they sent the contract via email. They also added that the complainant requested information on how the contracting was carried out, to which they responded that the contract was generated by the company MULTIGAS ASESORES, S.L. Regarding the contract, the respondent indicated that they were providing screenshots of the data they have.

FIFTH: Having stated in the documents with registration numbers O00007128e2200009122 and REGAGE22e00044783031 that the contracting took place on September 24, 2021, through the third party MULTIGAS ASESORES, S.L., two requests for information were sent to the respondent regarding these facts, requesting that they submit to this Agency information and documentation about the contract with that third party within ten working days. The first of these was registered out on February 1, 2023, while the second was registered on February 2, 2023.

The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by the respondent on February 2, 2023, as evidenced by the acknowledgments of receipt in the file.

SIXTH: Regarding the requested information, the respondent has not submitted a response to this Spanish Agency for Data Protection within the deadlines granted for this in the framework of the actions with file number EXP202202261.

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SEVENTH: According to the report obtained from the AXESOR tool, the entity BIROU GAS, S.L. is a SME (Medium-sized), established in 2014, with a turnover of 49,848,815 euros in 2021.

EIGHTH: On April 10, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

NINTH: The aforementioned initiation agreement was received by the accused party on April 11, 2023, as evidenced by the acknowledgment of receipt in the file.

TENTH: On April 24, 2023, with entry registration number REGAGE23e00026031401, the accused party submitted a written statement of allegations in which it expresses a specific request for the suspension of the payment deadline for the proposed sanction, stating that the person responsible for downloading the notifications of the unanswered information requests was dismissed during the period when such notifications were issued, which was the reason they were misplaced and not downloaded absolutely involuntarily by the accused party. To substantiate this claim, the accused party offers to provide any necessary documentation.

Regarding the requested information, the accused party indicates that the contract under which MULTIGAS ASESORES is authorized to acquire clients for both services and supplies was not signed by the accused party but by the company DIGITALIZACIÓN ENERGÉTICA, S.L., with CIF B02827335, which is contracted by the accused party to carry out the task of acquiring and contracting commercial channels. A contract between DIGITALIZACIÓN ENERGÉTICA, S.L. and the accused party is provided, which states in its Annex I that the data controller is the accused party.

Furthermore, the accused party indicates that MULTIGAS ASESORES is the trade name used to conduct its activity by A.A.A., with DNI ***NIF.1, and a contract between DIGITALIZACIÓN ENERGÉTICA, S.L. and A.A.A. is provided, which states in its Annex I that the data controller is DIGITALIZACIÓN ENERGÉTICA, S.L.

It adds that the attached contract includes the Code of Good Commercial Practices that must govern the actions of the salesperson and through which the conditions under which contracting must be carried out are regulated.

Additionally, the accused party explains that the validation policy for contracts is carried out by its Distributor Support department, where a verification procedure has been established for both the documentation provided and the contracts intended to be registered by the various commercial

channels.

The accused party clarifies that in this procedure, different checks are carried out, depending on the type of contract, the type of consumer, and the channel that performs the acquisition, and in the event that any irregularity is detected, the process is concluded with a verification call to the specific customer.

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The accused party also provides the internal validation code that it carries out and states that this procedure was the one followed to verify the accuracy of the documents and data contained in the claimant's contract.

It reiterates that it did not respond to the last requests made by this Agency because the person responsible for the downloads was dismissed from the company, and due to an administrative error, those notifications remained pending to be downloaded and answered, as evidenced by the fact that previous ones were downloaded and answered on time, with the requested documentation provided. Regarding the amount of the sanction, the accused party argues that the company contracting with MULTIGAS ASESORES is DIGITALIZACIÓN ENERGÉTICA, S.L., and therefore understands that, in the event a sanction is imposed, in application of Article 83.5 of the GDPR, it should be adjusted to 4% of the total annual turnover of the latter company and not of BIROU GAS S.L.

Finally, the accused party requests that, given the information requests already addressed and considering the circumstances regarding its notification, the present sanctioning procedure be archived without imposing any sanction or, in accordance with the principle of proportionality of administrative sanctions, a minimum degree of sanction be imposed.

ELEVENTH: A list of documents in the procedure is attached as an annex.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The information requests indicated in the fifth antecedent were notified to the accused party in accordance with the provisions of the LPACAP and were received as evidenced by the acknowledgments of receipt in the file.

SECOND: The accused party has not responded to the information requests made by the Agency before the initiation agreement of the present sanctioning procedure was issued.

THIRD: The notification of the initiation agreement of the present sanctioning procedure was received by the accused party on April 11, 2023.

FOURTH: The accused party has submitted allegations to the initiation agreement of this sanctioning procedure as recorded in the tenth antecedent.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the respondent, the following should be noted.

The information requests that were not addressed, for which a response period of ten working days was granted, were duly notified on February 2, 2023, as evidenced by the acknowledgments of receipt in the file. Therefore, the assertion made by the respondent regarding the notifications being pending download cannot be accepted by this Agency, as the respondent entity appeared before the DEHÚ through its representative, accepting the notifications made available to it on the indicated date.

Additionally, the initiation of the sanctioning procedure was agreed upon on April 10, 2023, without any response to those requests having been received by that date. The response to the information requests during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement.

Regarding the information provided with the intention of responding to the information requests of file EXP202202261, this Agency acknowledges receipt and incorporates it into said file, without this statement implying any pronouncement on it.

Based on the information provided, it also requests that the sanction be attributed to the entity DIGITALIZACIÓN ENERGÉTICA, S.L., as it is the one contracting with MULTIGAS ASESORES, under Article 83.5 of the GDPR. In this regard, it should be noted that this issue should have been resolved, if applicable, in file EXP202202261, which was resolved on March 27, 2023. In the present procedure, the infringement is only attributable to BIROU GAS, S.L., as it arises from the lack of response to the information requests made by this Agency to this entity, as recorded in the facts and in the reasoning of the initiation agreement and this proposal for resolution.

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Finally, regarding the request for suspension of the payment deadline for the proposed sanction, it is reported that the deadlines indicated in the initiation agreement correspond to the possibility of availing oneself of the reductions regulated in Article 85 of the LPACAP prior to the conclusion of the procedure. The first reduction of 20% is linked to the acknowledgment of responsibility within the period granted for submitting allegations to the initiation agreement. The second reduction is linked to the voluntary payment of the proposed sanction at any time prior to the resolution of the present procedure. These reductions can only be made in the indicated cases and under the informed conditions, and their extension does not correspond to other deadlines or procedural moments different from those specified. As stated in the final part of this resolution proposal, one can still avail oneself of the second reduction corresponding to the voluntary payment of the proposed fine. If the voluntary early payment is not availed, the corresponding deadline for the payment of the sanction will formally begin when the resolution that concludes the procedure is issued and is enforceable.

III

Unfulfilled Obligation

In accordance with the evidence available, it is considered that the claimed party has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of the claimed party, the investigative power conferred to control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the claimed party, for violation of Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller

or the processor, to provide any information required for the performance of its functions; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the exercise of its functions; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States.”

IV

Classification and Qualification of the Infringement

In accordance with the evidence available, it is considered that the facts presented could constitute an infringement, attributable to the claimed party.

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This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.
o) Resistance or obstruction to the exercise of the inspection function by the competent data protection authority.”

V

Proposal for Sanction

In light of the facts presented, it is considered appropriate to charge the respondent for the violation of Article 58.1 of the GDPR as classified in Article 83.5.e) of the GDPR. The sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

It is noted that no mitigating factors are applicable, and the following facts have been considered as aggravating:

- Art. 83.2 b) GDPR: the intentionality or negligence in the infringement. This is a company that is aware of the actions being taken by this Agency to clarify the facts subject to the complaint upon receiving successive requests and information requirements, and that, despite this knowledge, intentionally or negligently omits the information required to clarify its legal relationship with the third party to which the responsibility derives.

Additionally, this is a company that has been active since 2014, with a turnover close to 50 million euros, and therefore should have established procedures for complying with the obligations set forth in data protection regulations, including responding to the requests of the supervisory authority, having established a procedure to ensure that notifications made by this Agency are not left unanswered, taking into account that, contrary to what the respondent claims, such notifications were duly made.

- Art. 83.2 k) GDPR: any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the

infringement. By failing to respond to the information request made, the respondent obstructs this Agency's supervisory work regarding the guarantees of the personal data processing of new clients collected for it by third parties, which the respondent uses to generate new income.

In view of the above, the following is issued:

PROPOSAL FOR RESOLUTION

That the Director of the Spanish Agency for Data Protection sanctions BIROU GAS, S.L., with NIF B39806062, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €60,000.00 (sixty thousand euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €48,000.00, and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

Should it choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must make the payment by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the sanction amount. Additionally, it must send the proof of payment to the General Subdirectorato of Inspection to proceed with closing the file.

In virtue of this, you are notified of the above, and the procedure is made known so that within TEN DAYS you may present any arguments you consider in your defense and submit any documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

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B.B.B.

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ANNEX

Index of file EXP202303792

09/03/2023 Internal note

22/03/2023 REPORT_COMMERCIAL_BIROU_GAS_SL

23/03/2023 Diligence

11/04/2023 Agreement to initiate against BIROU GAS, S.L.

24/04/2023 Response to request from BIROU GAS SL

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SECOND: On May 25, 2023, the party being claimed has proceeded to pay the fine in the amount of 48,000 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure, and their effectiveness shall be conditioned on the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303792, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to BIROU GAS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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